Ruchi Talreja vs State on 14 September, 2010

Author: Sanjiv Khanna

Bench: Sanjiv Khanna

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*       IN THE HIGH COURT OF DELHI AT NEW DELHI
+       BAIL APPLN. 874/2010
        RUCHI TALREJA                          ..... Petitioner
                        Through   Mr. Sidhartha Luthra, Sr. Advocate
                                  with Mr. Sameer Mendiratta,
                                  Advocate.
                    versus
        STATE                             ..... Respondent
                        Through   Ms. Fizani Hussain, APP.
        CORAM:
         HON'BLE MR. JUSTICE SANJIV KHANNA

                             ORDER
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% 14.09.2010

1. This is an application for anticipatory bail. Learned counsel for the applicant states that the applicant is an innocent house wife, who is not a signatory of any of the documents and being a lady she is entitled to benefit of proviso to Section 437 of the Code of Criminal Procedure, 1973 (Code for short). It is submitted that the applicant has two children, who are dependent on her. Son of the applicant is studying in second year college and the daughter is in 9th class. It is stated that the applicant recently in May, 2010 had suffered Jaundice and is under treatment for Thyroid. He further states that the interim protection was granted by this Court by order dated 17th May, 2010, but the applicant was never called to join investigation. Learned counsel for the applicant Bail Application 874/2010 Page 1 submits that the applicant has filed a probate petition in the year 2004 on the basis of the alleged Will of late Mr. Kasturi Lal Kalra, which is partly in her favour and is pending. It is stated that the applicant has disputes with her mother Ms. Sunita Kalra.

2. The applicant has been named in FIR No.111/2010 under Sections 420/406/467/468/471/34 Indian Penal Code which was recorded on a complaint made by Ms. Santosh Mittal. It is alleged in the FIR that the applicant and her husband Mr. Chandra Pal Talreja had represented and claimed that the property bearing No. 44-PP Block, Pitam Pura, Delhi was owned by the father of the applicant late Mr. Kasturi Lal Kalra. The said Mr. Kasturi Lal Kalra had sold the said property to one Mr. Vaid Prakash and husband of the applicant had purchased the said property from Mr. Vaid Prakash. Both transactions being on the basis of documents like agreement to sell, power of attorney, Will etc. Mr. Chandra Pal Talreja and the applicant had produced registered Wills of late Mr. Kasturi Lal Kalra in favour of Mr. Vaid Prakash and by Mr. Vaid Prakash in favour of Mr. Chandra Pal Talreja. In the FIR it is stated that the complainant relied upon the statements made by Mr. Chandra Pal Talreja and the applicant, who had assured that there was no Bail Application 874/2010 Page 2 discrepancy in the documents. On the basis of the statements and the assurances

given by the applicant and Mr. Chandra Pal Talreja, the complainant purchased the first floor of the said property with roof rights from them on execution of documents like agreement to sell, power of attorney etc. on 1st August, 2008. These documents were registered. The complainant thereafter took possession and put her locks. It is alleged in the FIR that in October, 2009, the complainant noticed that the locks had been broken and Mr. Chandra Pal Talreja and the applicant had put their belongings. When confronted, the applicant and Mr. Chandra Pal Talreja had stated that they had temporarily put some office articles in a room and they shall vacate the same. Subsequent inquiries revealed that Mr. Chandra Pal Talreja was not the owner of the property and actually the applicant's mother Ms. Sunita Kalra was the recorded owner of the property in view of the mutation effected by the DDA in their records after death of late Mr. Kasturi Lal Kalra. The applicant on 3rd May, 1995 had executed a registered relinquishment deed in favour of her mother Ms. Sunita Kalra pursuant to which mutation was effected by the DDA in favour of Ms. Sunita Kalra by their letter dated 8th February, 1996.

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3. As per the prosecution the two Wills; registered Will of late Kasturi Lal Kalra dated 26th February, 1987 in favour of Vaid Prakash and Will dated 18th March, 1990 by Vaid Prakash in favour of Chandra Pal Talreja have been found to be fabricated documents and as per the records available in the Sub-Registrar Office, Kashmere Gate, these are not registered documents. The fact that the applicant has filed a probate petition in respect of a different Will of late Mr. Kasturi Lal Kalra establishes that these two Wills are fabricated.

4. Learned APP has pointed out that in the present case the applicant was not a dormant or a salient spectator, who was not involved or a participant in the transaction. The property belonged to her late father. She had executed a relinquishment deed in 1995 and thereafter the property was mutated in the name of her mother Ms. Sunita Kalra in the records of the DDA. Ms. Sunita Kalra has filed a civil suit against the applicant and the same is pending disposal.

5. It is submitted by the learned APP that it is impossible to believe that the applicant was not aware of the sale transaction and had not participated in the same. She has again drawn attention to the allegations made in the FIR and the active role performed by the Bail Application 874/2010 Page 4 applicant. It is submitted that the applicant is a party to fraud even if she has not signed papers and the complainant made to part with Rs. 14 lacs by concealing and stating wrong facts and on the basis of fabricated documents. The money has vanished and the complainant has been left high and dry. She has paid substantial amount of Rs. 14 lacs but secured no rights.

6. With regard to medical condition of the applicant no documents have been placed on record. Learned APP on instructions from the Investigating Officer, states that the applicant was suffering from Jaundice but now she has recovered. It is stated that the Investigating Officer did not issue any notice for interrogation of the applicant as she is a lady but had visited her house for the purpose of investigation and it is alleged that the applicant did not cooperate.

7. In view of the aforesaid, the anticipatory bail application is dismissed. Observations made in this order are for the purpose of the disposal of the anticipatory bail application and will not be construed as expression of opinion on merits binding on trial court.

SEPTEMBER 14, 2010 SANJIV KHANNA, J.
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